EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

DECISION

Application no. 15364/15
Lev Aleksandrovich PONOMAREV and Yevgeniy Vitalyevich IKHLOV
against Russia

The European Court of Human Rights (Third Section), sitting on 24 January 2017 as a Committee composed of:

Helena Jäderblom, *President,*
Dmitry Dedov,
Branko Lubarda, *judges,*
and Fatoş Aracı, *Deputy Section Registrar,*

Having regard to the above application lodged on 16 March 2015,

Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicants, Mr Lev Aleksandrovich Ponomarev and Mr Yevgeniy Vitalyevich Ikhlov, are Russian nationals, who were born in 1941 and 1959 respectively and live in Moscow.

The Russian Government ("the Government") were represented by Mr G. Matyushkin, Representative of the Russian Federation at the European Court of Human Rights.

The applicants complained under Articles 10, 11 and 13 of the Convention alleging a violation of their right to peaceful assembly and lack of effective domestic remedies.

The applicants' complaints were communicated to the Government, who submitted their observations on the admissibility and merits. On 5 October 2015 the observations were forwarded to the applicants, who were invited to submit their own observations by 7 December 2015. No reply was received to the Registry's letter.

By letter dated 20 January 2016, sent by registered post, the applicants were notified that the period allowed for submission of their observations

had expired on 7 December 2015 and that no extension of time had been requested. The applicants' attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. According to the postal register, the applicants received this letter on 2 February 2016. However, no response has been received.

THE LAW

The Court considers that, in these circumstances, the applicants may be regarded as no longer wishing to pursue their application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 16 February 2017.

Fatoş Aracı
Deputy Registrar

Helena Jäderblom
President